Dated: October 10, 1978.

JAY SOLOMON,
Administrator of General Services.

[FR Doc. 78-29999 Filed 10-24-78; 8:45 am]

[6820-24-M]

CHAPTER 101—FEDERAL PROPERTY MANAGEMENT REGULATIONS

SUBCHAPTER G—TRANSPORTATION AND MOTOR VEHICLES

[FPMR Amdt. G-46]

PART 101-38—MOTOR EQUIPMENT MANAGEMENT

Subpart 101-38.6—Exemptions From Use of Official U.S. Government Tags and Other Identification

MOTOR VEHICLE AND TRANSPORTATION MANAGEMENT

AGENCY: General Services Administration.

ACTION: Final rule.

SUMMARY: This regulation updates the list of organizational activities of the Department of Health, Education, and Welfare (DHEW), which have been granted unlimited exemptions by GSA from displaying U.S. Government tags and other identification. This regulation is necessary to show the full extent of DHEW's exemption.

EFFECTIVE DATE: October 25, 1978.

FOR FURTHER INFORMATION CONTACT:

Mr. John I. Tait, Director, Regulations and Management Control Division, Office of the Executive Director, Federal Supply Service, General Services Administration, Washington, D.C. 20406, 703-557-1914.

Section 101-38.602(f) is revised to read as follows:

§ 101-38.602 Unlimited exemptions.

* * * * *

(f) *Health, Education, and Welfare, Department of.* Motor vehicles operated by the Food and Drug Administration in undercover law enforcement and similar investigative work; motor vehicles operated by St. Elizabeths Hospital in out-patient work where the identification of the vehicle would be prejudicial to the patient; one vehicle operated by the National Institutes of Health in transporting mentally disturbed children; and motor vehicles operated by the Office of Investigations and Office of the Inspector General that are used for law enforcement and investigative purposes.

* * * * *

(Sec. 205(c), 63 Stat. 390 (40 U.S.C. 486(c)).)

Dated: October 4, 1978.

JAY SOLOMON,
Administrator of General Services.

[FR Doc. 78-30000 Filed 10-24-78; 8:45 am]

[4310-84-M]

Title 43—Public Lands: Interior

CHAPTER II—BUREAU OF LAND MANAGEMENT, DEPARTMENT OF THE INTERIOR

APPENDIX—PUBLIC LAND ORDERS

[OR-14341, OR-17491]

PUBLIC LAND ORDER

Oregon; Revocation of Executive Orders No. 4848 and No. 5033

AGENCY: Bureau of Land Management (Interior).

ACTION: Final rule.

SUMMARY: This action will restore 80 acres of land to operation of the public land laws generally, including the mining and mineral leasing laws.

EFFECTIVE DATE: November 23, 1978.

FOR FURTHER INFORMATION CONTACT:

Eldon G. Hayes, 202-343-8731.

By virtue of the authority contained in section 204 of the Federal Land Policy and Management Act of October 21, 1976, 90 Stat. 2751; 43 U.S.C. 1714, it is ordered as follows:

1. Executive Orders No. 4848 and No. 5033 of April 2, 1923, and January 19, 1929, respectively, which withdrew the following described public lands for use by the State of Oregon as lookout stations are hereby revoked:

WILLAMETTE MERIDIAN

T. 7 S., R. 7 W.,
Sec. 9, NW¼NW¼.
T. 40 S., R. 7 E.,
Sec. 15, SW¼SE¼.
The areas described contains 80 acres in Polk and Klamath Counties.

2. At 10 a.m. on November 23, 1978, the land shall be open to such forms of disposition as may by law be made of revested Oregon and California Railroad Grant Lands.

3. At 10 a.m. on November 23, 1978, the lands will be open to location under the U.S. mining laws and to applications and offers under the mineral leasing laws.

Inquiries concerning the land should be addressed to the State Director, Bureau of Land Management, P.O. Box 2965, Portland, Oreg. 97208.

GUY R. MARTIN,
Assistant Secretary of the Interior.

OCTOBER 18, 1978.

[FR Doc. 78-30092 Filed 10-24-78; 8:45 am]

[6712-01-M]

Title 47—Telecommunication

CHAPTER I—FEDERAL COMMUNICATIONS COMMISSION

[Docket No. 21039; FCC 78-713]

PART 21—DOMESTIC PUBLIC RADIO SERVICES (OTHER THAN MARITIME MOBILE)

Reflecting the Availability of Land Mobile Channels in the 470-512 MHz Band in 13 Urbanized Areas of the United States

AGENCY: Federal Communications Commission.

ACTION: Final rule.

SUMMARY: In earlier stages of this proceeding the FCC decided that two UHF TV channels would be used for land mobile radio purposes in each of our Nation's 10 largest cities. In addition, one UHF TV channel would be used for land mobile radio purposes in three other major cities. It was also decided that the major portion of each of these channels would be used for industrial, land transportation, and public safety radio systems and that 10 percent of each of the channels would be used for common carrier car telephone systems. The result is that 12 car telephone channels are carved out of each UHF TV channel. The purpose of this order is to resolve the controversies which have prevented the FCC from assigning licenses to the car telephone companies.

In the order, the FCC decided that any qualified applicant may apply for a license to operate. In other words, in order to receive a license, an applicant does not already have to be a car telephone company. Rather, the applicant need only demonstrate that it is qualified to operate a car telephone system.

The FCC adopted a plan in which all of those that receive licenses will share the channels. A customer of a company can "seize" a car telephone channel and use it for the duration of the telephone call. Once the call is completed, the channel is available for use by any customer of any of the companies licensed to use the channels.

The FCC also established cutoff dates for filing applications in order that the companies can negotiate technical arrangements with each other. Those that apply after the cutoff date must abide by the technical arrangements decided by those that applied before the cutoff date.

Lastly, the FCC established technical standards for the use of the car telephone channels.

EFFECTIVE DATE: December 26, 1978.

ADDRESS: Federal Communications Commission, Washington, D.C. 20554.

FOR FURTHER INFORMATION CONTACT:

S. R. McConoughey, Common Carrier Bureau, 202-632-6400.

SUPPLEMENTARY INFORMATION:

Adopted: October 5, 1978.

Released: October 16, 1978.

By the Commission.

In the matter of Amendment of part 21 of the rules to reflect the availability of land mobile channels in the 470-512 MHz band in 13 urbanized areas of the United States, memorandum opinion and order (proceeding terminated). See 42 FR 13309.

1. This proceeding is a continuation of docket No. 18261. (See below for the history of that docket.) The purpose of this document is to resolve the controversies which have prevented usage of the frequencies in the 470-512 MHz band in the domestic public land mobile radio service (DPLMRS).

Background

2. This proceeding was initiated by a notice of proposed rulemaking on July 17, 1968 (14 FCC 2d 297), in which we considered means for providing additional spectrum space to meet the needs of land mobile radio services in major population centers. That notice was followed by our first report and order (23 FCC 2d 325 (1970), in which we adopted rules to provide for use of a maximum of two of the lower seven UHF TV channels, on a shared basis with television broadcasting, by land mobile stations within 50 miles of the center of the 10 largest urbanized areas. However, we left open assignment principles and specific frequencies to be designated for each of the land mobile services. Subsequently, in a notice of proposed rulemaking, released January 28, 1971 (27 FCC 2d 371), we proposed decisions on those matters, and rules to implement the decisions. With respect to the domestic public land mobile radio service (DPLMRS), we proposed 12 frequency pairs (for each television channel to be shared), for use by nonwire line common carriers (more commonly called radio common carriers or RCC's). We further stated that use of the frequencies was to be limited to those licensees authorized at that time to serve the areas involved.

3. After comments and reply comments were received, we issued our second report and order (30 FCC 2d 221) on June 22, 1971. In that document we assigned frequencies, adopted rules, and set out in § 21.501(k)(1), as well as related sections, provisions for the DPLMRS. However, we also concluded that there was no support in the record for the conclusion that ruinous competition would result from allowing new carriers to enter these markets, and so we decided in favor of "open entry," that is, the frequencies would not be limited to existing carriers.

4. After release of that document we received petitions for partial reconsideration from the National Association of Radiotelephone Systems (NARS)[1] and from a group of RCC's directed against our "open entry" decisions in the DPLMRS. Both petitioners also requested a stay of that portion of the order, to allow them to make a showing that would justify "closed entry," that is eligibility limited to existing licensees. On August 9, 1971, we issued a memorandum opinion and order (31 FCC 2d 48 (1971)) granting the petition for stay of effective date and the petition for partial stay, and postponing the effective date of allocation of frequencies to the DPLMRS pending action on the petitions for partial reconsideration.

5. On March 15, 1974, we proposed to extend the land mobile UHF TV sharing to Houston, Dallas/Fort Worth, and Miami, fourth further notice of proposed rulemaking (45 FCC 2d 1093). By our fifth report and order issued July 17, 1974 (48 FCC 2d 360), this was done, including provisions for DPLMRS operations. Docket No. 18261 was terminated at that time, except with respect to disposing of petitions for reconsideration.

6. In our memorandum opinion and order and notice of proposed rulemaking issued on January 31, 1977 (63 FCC 2d 126), we denied the petitions for reconsideration seeking "closed entry" and reaffirmed our policy of permitting "open entry" to these new frequencies, thus terminating the proceedings for docket No. 18261. We proposed to make these frequencies available only on a joint-use basis, that is any user could "seize" an idle channel and use it exclusively for the duration of a call. At the end of the call, the channel would be released and available to the next user. Where a "group" of 12 such channels is trunked, greater use can be made of the individual radio channels than if each carrier had fewer "exclusive" channels. Implementation of this concept could be accomplished by carriers either sharing a common terminal or using wireline or "off-the-air" monitoring to "seize" a channel if operating through separate terminals. Because each licensee would not be obtaining the exclusive use of these channel frequencies, applicants would not be required to submit a showing of public need for the proposed facilities. There would be no "cutoff" dates because applications would not be mutually exclusive. We proposed that a system of 12 trunked channels would be considered loaded when there were 100 mobile subscriber units per channel. No further market entry would be authorized at that point. Finally, we proposed that frequency assignments in cities where two television channels were allocated to DPLMRS would consist of the base station frequencies on one TV channel and the mobile frequencies on the other TV channel. We solicited comments and reply comments on these proposals. A list of parties who submitted filings is contained in appendix A.[2]

Summary of the Comments

7. Most of the comments received were directed at our frequency sharing plan. Some of the parties suggested that the sharing of the Guardband[3] paging frequencies has not worked as well as anticipated and that sharing of two-way frequencies is much more complicated, technically and otherwise, than sharing of one-way frequencies. It was suggested that a common terminal under the control of one operator be used. Others commented that a limited number of licenses be given out. Then, if the channels are not substantially loaded within a certain period of time, new entrants should be allowed. One party suggested that one group of 12 channel pairs be used by existing licensees and that the other group of 12 channel pairs be used by new entrants to the market, while others urged that all 24 channel pairs be allocated to one licensee. An association of RCC's argued that allowing new entrants would delay service to the public because in this association's city the existing carriers are already organized to share the frequencies. The Commission was criticized for not making an adequate finding

[1] NARS has recently changed its name to Telocator Network of America.

[2] On Mar. 10, 1977, NARS filed a petition for reconsideration, praying that we reconsider our Jan. 31, 1977 order to the extent that such order was intended to constitute final agency action. However, in our present order, we have considered all of the issues raised, including those discussed by NARS in its petition for reconsideration. Accordingly, we are dismissing the NARS petition.

[3] Docket No. 16788, 12 FCC 2d 841, recon. denied, 14 FCC 2d 269, aff'd sub nom. *Radio Relay Corporation* v. *FCC* 409 F. 2d 322 (2d Cir. 1968).